

Equivalent Citations

citation codes .

Shreya Singhal v. Union Of India .

Supreme Court Of India (May 16, 2013)

CASE NO.

(Record of Proceedings),Crl. MPs Nos. 11600-601 of 2013 in WP (Crl.) No. 167 of 2012, decided on May 16, 2013

DISPOSITION

NA

JUDGES

- Justice Dipak Mishra
- Dr. Justice B.S. Chauhan

ATTORNEY

- Soli J. Sorabjee, Senior Advocate (Ms Manali Singhal, Ninad Laud, Ms Ranjeeta Rohatgi and Santosh Sachin, Advocates) for the Petitioner;
- Sidharth Luthra, Additional Solicitor General (D.S Mahra, A.K Mishra, Aditya Singla, Gurmohan Singh Bedi, Ms Asha Gopalan Nair, Sarfraz A. Siddiqui, D. Mahesh Babu, Nikhil Jain, B. Ramakrishna Rao, V.G Pragasam, Mohit D. Ram and Apar Gupta, Advocates) for the Respondent.

SUMMARY

Factual and Procedural Background

An application was filed by Ms. Jaya Vindhya seeking various reliefs. The immediate urgency of the application diminished after she was granted bail by the competent court. During the hearing, Mr. Sidharth Luthra, learned Additional Solicitor General of India, informed the Court of an Advisory dated 9-1-2013 issued by the Union of India concerning arrests under Section 66- A of the Information **Technology** Act, 2000. The Court consequently considered the contents of this Advisory.

Legal Issues Presented

The opinion addresses a procedural matter and does not frame distinct legal issues.

Arguments of the Parties

Union of India

- Through the Additional Solicitor General, the Union highlighted the existence of a Central Government Advisory dated 9-1-2013 requiring senior-level approval before any arrest is made under Section 66-A of the Information **Technology** Act, 2000.

Table of Precedents Cited

No precedents were cited in the provided opinion.

Court's Reasoning and Analysis

The Court noted that the Advisory issued by the Central Government was intended to prevent misuse of Section 66-A and to ensure that arrests are made only with higher-level authorization. Observing the “facts and circumstances of the case,” and considering that the applicant’s bail eliminated immediate urgency, the Court deemed it appropriate to direct all States and Union Territories to comply with the Advisory until further orders. The reasoning is concise and rooted in the need for uniform, interim safeguards against arbitrary arrests under the impugned provision.

Holding and Implications

Holding: All States and Union Territories are directed to ensure compliance with the Government Advisory dated 9-1-2013 before effecting any arrest under Section 66-A of the Information **Technology** Act, 2000, until further orders of the Court.

Implications: The order imposes an interim, nationwide procedural safeguard that requires high-level police approval prior to arrests under Section 66-A. It directly affects law-enforcement practices but does not establish a new substantive legal precedent beyond the temporary directive.

JUDGMENT

Order

1. This application has been filed seeking various reliefs. However, in view of the fact that the applicant, Ms Jaya Vindhyalaya has already been granted bail by the learned competent court, the urgency in this matter does not survive. All the issues may be considered after the reopening of the courts.

2. However, Mr Sidharth Luthra, learned Additional Solicitor General of India has pointed out that in view of the existing fact situation the Union of India has issued an Advisory dated 9-1-2013, which reads as under:

“No. 11(6)/2012-CLFE

Government of India/Bharat Sarkar

Department of Electronics and Information

Technology /Electroniki aur Soochna Praudigiki Vibhag

Electronics Niketan, 6, CGO Complex, New Delhi 110003

Dated 9-1-2013

To

1. Chief Secretaries of all States and Union Territories
2. Director General of Police of all States and Union Territories

Subject: Advisory on implementation of **Section 66-A of the Information **Technology** Act, 2000.**

Dear Sir/Madam,

Cyberspace is a complex environment resulting from the interaction of people, software, hardware and services on the internet supported by communication **technology**, devices and connectivity resulting in distribution of information worldwide. In the recent years, web and social media have emerged as one of the important public communication channels. It brings social groups together in one virtual place and enables interaction in real time. Owing to numerous benefits brought out by technological advancement, cyberspace is the common tool used by citizens, civil society, businesses and the Governments for communication and dissemination of information. Cyberspace has distinct and unique characteristics compared to physical **space**. The cyberspace is virtual, borderless and offers complete anonymity. Anyone can post his/her comments/views on social sites. Messages/communications can be made from one-to-one, one-to-many, many-to-one and many-to-many persons/devices spread out all across the globe. These services offer great advantage in accessing and posting the information and expressing the views in our day-to-day life. However, cyberspace also has the potential to be misused for variety of purposes such as spreading hate mails, posting inflammatory, harmful and offensive information in the form of images, videos, photos and text. Provision for addressing such offenses exists in **Section 66-A of the Information **Technology** Act, 2000.**

2. Recently certain incidents have been reported wherein **Section 66-A of the Information **Technology** Act, 2000** has been invoked solely as well as with other sections of the **Penal Code, 1860** against certain persons for posting/communicating certain content which was considered by the police to be harmful. Such action attracted lot of media attention and resulted in protest from the civil society, citizens and Members of Parliament in different

parts of the country. Due diligence and care may be exercised while dealing with cases arising out of the alleged misuse of cyberspace.

3. The State Governments are advised that as regard to arrest of any person in complaint registered under **Section 66- A of the Information Technology Act, 2000**, the police officer concerned of a police station under the State's jurisdiction may not arrest any person until he/she has obtained prior approval of such arrest, from an officer, not below the rank of the Inspector General of Police in the metropolitan cities or of an officer not below the rank of Deputy Commissioner of Police or Superintendent of Police at the district level, as the case may be.

4. It is requested that appropriate instructions may be issued in the matter to all concerned.

Yours sincerely,

sd/-

(Dr Gulshan Rai)

Group Coordinator and Director General

Tel: 011-24368544”

3. In the facts and circumstances of the case, we direct all the States/Union Territories to ensure compliance with the Advisory till further orders of this Court before effecting arrest under the said Act. A copy of this order be sent to the Chief Secretaries of all the States/ Union Territories.

Court Masters